		the terms of the Production Agreement are clear and ambiguous with respect the products covered by the agreement; the candles are not one of the products "specifically set forth in one or more **<u>Scope of Work ('SOW')</u>** documents"; and, the indemnity provision does not encompass the candles. Accordingly, there is no triable issue of fact and Defendant is entitled to summary judgment on the Complaint. Defendant shall give notice of the ruling.
2.	2025-1459954 Azadnia vs. KC Wilson & Associates LLC	Plaintiff Zahra Azadnia's Motion to Set Aside Order Dismissing the Case is granted. Plaintiff moves under the mandatory provision of CCP section 473(b), for relief to set aside the dismissal and to restore this case to the active calendar, due to attorney fault. CCP section 473, subdivision (b), provides in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Mandatory relief is available, "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise or neglect, [the court shall] vacate any . . . (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc. § 473, subd. (b).) Relief is mandatory when a complying affidavit is filed, even if the attorney's neglect was inexcusable. (*Metro. Serv. Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) Here, the Court finds Plaintiff is entitled to relief under the mandatory provision of CCP section 473(b). Plaintiff's counsel has admitted fault for the dismissal and has supported the application with a declaration attesting to the same. (ROA 52, 54.) Specifically, Plaintiff's counsel, Pasha Vafaei, attests that the OSC was missed due to the handling attorney leaving the firm prior to the OSC hearing date and not properly calendaring the OSC hearing date. Mr. Vafaei further attests that he was "surprised and concerted" when he received the Court's minute order dismissal the case, and apologizes for the oversight. (Vafaei Decl. at ¶¶ 2-4, 7.) The Clerk is directed to vacate the dismissal, without prejudice, entered on April 7, 2026 (ROA 48).

		A Case Management Conference and Order to Show Cause re: Dismissal (for Plaintiff's failure to appear at the Case Management Conference) are scheduled for [DATE] at 09:00 AM in Department N18. Plaintiff is ordered to give notice of the ruling.
4.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	Case Management Conference The unopposed general and special demurrer by Cross-Defendants Centennial Bolt, Inc. and Mark Cordova (collectively, "Cross-Defendants") to the eighth cause of action alleged in the First Amended Cross-Complaint ("FACC") filed by Cordova Bolt, Inc. ("Cordova Bolt") is overruled in part and sustained in part. As an initial matter, the Court notes Cordova Bolt did not expressly identify what species of fraud is alleged in the eighth cause of action for fraud. "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television,* 35 Cal. 3d at 216 [citation and internal quote marks omitted].)